Master Services Agreement (MSA)

Governing terms for all IT and security services performed by BVTech LLC

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Parties and Effective Date

This Master Services Agreement ("Agreement") is entered into as of the Effective Date by and between BVTech LLC, a Texas limited liability company ("Provider" or "BVTech"), with its principal office at 1902 Kirby Rd, El Campo, TX 77437, and the client identified on the signature page ("Client"). Provider and Client are each a "party" and together the "parties."

Client Legal Name: ____

Client Address: ____

Client Primary Contact / Email: ____

Services; Statements of Work

Provider will perform the managed IT, professional, and/or security services described in one or more mutually executed Statements of Work, Service Orders, or Quotes (each an "SOW") incorporating this Agreement by reference. In the event of conflict, the SOW controls for that engagement only. Changes to scope require a written Change Order signed by both parties describing the change, schedule impact, and fee impact.

Client Responsibilities

- Provide timely access to facilities, systems, personnel, credentials, and information reasonably required to perform the Services.
- Maintain valid licenses for all software Provider is asked to support, and lawful rights to all data on Client systems.
- Designate an authorized point of contact empowered to make decisions and approve changes.
- Maintain the minimum environment standards stated in the applicable SOW (supported operating systems, vendor-supported hardware, adequate internet connectivity).
- Promptly notify Provider of any suspected security incident, outage, or material change to the environment.

Fees; Invoicing; Taxes

Client shall pay the fees stated in each SOW. Unless stated otherwise: recurring fees are invoiced monthly in advance; project fees are invoiced per the SOW milestones; time-and-materials work is invoiced monthly in arrears. Invoices are due within fifteen (15) days of the invoice date. Undisputed amounts more than ten (10) days past due accrue interest at the lesser of 1.5% per month or the maximum rate permitted by Texas law. Client is responsible for applicable sales and use taxes (excluding taxes on Provider's income). Provider may suspend Services on ten (10) days' written notice for material non-payment; suspension does not relieve Client of payment obligations.

Term and Termination

This Agreement begins on the Effective Date and continues until terminated. Either party may terminate (a) for convenience on sixty (60) days' written notice, subject to any minimum term in an active SOW; or (b) for material breach not cured within thirty (30) days of written notice (ten (10) days for non-payment). Upon termination, Client shall pay for all Services performed through the termination date, plus any early-termination amounts stated in an SOW. Sections concerning confidentiality, intellectual property, limitation of liability, payment, and governing law survive termination.

Offboarding Assistance

Upon termination, Provider will provide reasonable transition assistance at its then-current hourly rates, including transfer of administrative credentials, documentation in Provider's possession relating to Client's environment, and export of Client data from Provider-managed platforms, provided Client's account is in good standing.

Intellectual Property

Each party retains ownership of its pre-existing intellectual property. Deliverables created specifically for Client under an SOW are assigned to Client upon full payment, except that Provider retains ownership of its tools, scripts, templates, methodologies, and know-how ("Provider IP"), for which Provider grants Client a perpetual, non-exclusive, royalty-free license to use as embedded in the Deliverables for Client's internal business purposes.

Non-Solicitation of Personnel

During the term and for twelve (12) months after, neither party will directly solicit for employment the other party's employees who performed under this Agreement, without written consent. General public job postings are not a breach. If a party hires such an employee in violation of this section, it shall pay the other party a placement fee equal to fifty percent (50%) of the employee's first-year base compensation as liquidated damages, the parties agreeing actual damages would be difficult to ascertain and this amount is a reasonable estimate, not a penalty.

Confidentiality and Data Protection

"Confidential Information" means non-public information disclosed by either party, including business plans, pricing, network diagrams, credentials, security configurations, and personal information. The receiving party shall (a) use Confidential Information solely to perform under this Agreement, (b) protect it with at least the same care it uses for its own confidential information and no less than reasonable care, and (c) limit access to personnel and subcontractors bound by obligations at least as protective. Exclusions: information that is or becomes public without breach, was rightfully known prior to disclosure, is independently developed, or is rightfully received from a third party. Compelled disclosure is permitted with prompt notice (where lawful) and cooperation to seek protective treatment. Obligations survive termination for five (5) years; trade secrets are protected for as long as they remain trade secrets under the Texas Uniform Trade Secrets Act.

Provider will implement and maintain administrative, physical, and technical safeguards appropriate to the sensitivity of Client data, consistent with the NIST Cybersecurity Framework. Upon termination and written request, Provider will return or securely destroy Client data in its possession, subject to routine backup retention cycles and legal hold obligations.

Warranties; Disclaimers; Limitation of Liability

Limited Warranty

Provider warrants that Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards. Client's exclusive remedy for breach of this warranty is re-performance of the deficient Services, or if re-performance is not commercially practicable, a refund of fees paid for the deficient Services.

Disclaimer

EXCEPT AS EXPRESSLY STATED HEREIN, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE, OR THAT ALL SECURITY THREATS WILL BE DETECTED OR PREVENTED. NO MANAGED SECURITY SERVICE CAN GUARANTEE PREVENTION OF ALL CYBER INCIDENTS.

Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY TEXAS LAW, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST DATA (EXCEPT TO THE EXTENT CAUSED BY PROVIDER'S FAILURE TO PERFORM CONTRACTED BACKUP SERVICES), OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY. EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITS DO NOT APPLY TO: (a) A PARTY'S INDEMNIFICATION OBLIGATIONS; (b) BREACH OF CONFIDENTIALITY; (c) GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR FRAUD; OR (d) CLIENT'S PAYMENT OBLIGATIONS.

Mutual Indemnification

Each party shall defend, indemnify, and hold harmless the other from third-party claims arising from (i) its gross negligence or willful misconduct, (ii) its violation of applicable law, or (iii) bodily injury or tangible property damage caused by its personnel. The indemnified party shall give prompt notice and reasonable cooperation; the indemnifying party controls the defense and settlement (no settlement imposing obligations on the indemnified party without consent).

Insurance

Provider shall maintain during the term: commercial general liability of at least $1,000,000 per occurrence; professional liability / technology errors & omissions of at least $1,000,000; and cyber liability coverage. Certificates of insurance are available upon written request.

General Provisions

Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this Agreement shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC	**Client**
Signature: ________________________________	Signature: ________________________________
Name: ____________________________________	Name: ____________________________________
Title: _____________________________________	Title: _____________________________________
Date: _____________________________________	Date: _____________________________________